FREEDOM-OFFERS.COM

REAL ESTATE PURCHASE AGREEMENT

THIS AGREEMENT OF SALE, made on ______________________, by and between **Owner of Record** ("Seller") and **Freedom Offers LLC and/or assigns** ("Buyer").

PROPERTY ADDRESS. ____

APN. ____

DESCRIPTION — AS IS. The Property is conveyed in AS-IS condition and includes all fixtures, window and floor coverings, built-in appliances, draperies and hardware, shades, blinds, screens, awnings, outdoor plants and trees, and other permanently attached items, together with all improvements and appurtenances. Any items left behind by Seller become the property of Buyer.

I. TOTAL PURCHASE PRICE

Total Agreed Purchase Price: $ __________________________

Seller acknowledges that the agreed-upon price may not represent the Property's current fair market value.

The total purchase price shall be the sum of all amounts described below (check all that apply):

A. Cash Consideration

1. Earnest Money Deposit: $ ______________________

To be held by ______________________________ and applied toward the Purchase Price at Closing.

2. Cash Down Payment (Due at Closing): $ ______________________

Payable by Buyer to Seller in certified funds at Close of Escrow or settlement.

B. Subject-To Existing Financing (if applicable)

Buyer shall take title **subject to** one or more existing loans currently secured by mortgage(s) or deed(s) of trust against the Property. Buyer shall not formally assume such loans but agrees to make all payments as they become due, as further described in Section II – Financing Terms.

Lender / Beneficiary: ____

Approx. Unpaid Balance: $ ______________________________

Monthly Payment: $ ______________________________ Interest Rate: ________ %

The total of all existing encumbrances to which Buyer takes title shall be credited toward the Purchase Price.

C. Seller Financing (if applicable)

The remaining balance of the Purchase Price, after deduction of any subject-to encumbrances and cash payments, shall be evidenced by a **Promissory Note** executed by Buyer in favor of Seller in the principal amount of $ ____________________ , bearing interest at ________ % per annum. The Note shall be payable as provided therein and secured by a Mortgage or Deed of Trust on the Property. The detailed terms of the Note are described in Section II – Financing Terms.

II. FINANCING TERMS

A. Subject-To Existing Financing

1. Non-Assumption of Debt. Buyer shall acquire title to the Property subject to the existing mortgage(s) or deed(s) of trust described in Section I-B above. Buyer shall not assume such obligations but agrees to make all required payments directly to the lender or servicer to keep each loan in good standing.

2. Payment Responsibility. Beginning on ___________________________ , Buyer shall pay, as they come due:

- All monthly installments of principal, interest, and escrow items on the existing loan(s);
- All property taxes, assessments, association dues (if any), and insurance premiums; and
- Any other costs customarily associated with ownership and maintenance of the Property.

3. Adjustments for Loan Balances. If the actual unpaid principal balance of any existing loan differs from the amount stated herein:

- If less, the Purchase Price shall be reduced by that difference;
- If greater, Buyer's cash payment due at closing shall be reduced by that difference.

4. Escrow and Impound Accounts. Seller waives any right or claim to funds remaining in lender-held escrow or impound accounts for taxes, insurance, or mortgage insurance (if applicable).

5. Due-on-Sale Disclosure. Buyer and Seller acknowledge that the transfer of title without lender consent may trigger a "due-on-sale" clause contained in the underlying loan(s). Buyer assumes full responsibility for any such risk and agrees to indemnify and hold Seller harmless from any loss or demand resulting from such enforcement.

B. Seller-Financing Terms (if applicable)

1. Note and Security Instrument. Buyer shall execute a Promissory Note in favor of Seller in the principal amount stated in Section I-C. The Note shall be secured by a Mortgage or Deed of Trust on the Property in a position agreed upon by the parties.

2. Payment Terms. The Note shall bear interest at the rate of _______ % per annum, payable in monthly installments of $ ____________________ commencing on ______________________ , and continuing until ______________________ , or until the Note is paid in full.

3. Prepayment. The Note may be prepaid in whole or in part at any time without penalty, unless otherwise specified.

4. Default. In the event of default under the Note or security instrument, Seller shall have all rights and remedies provided by applicable law, including but not limited to foreclosure under the power of sale or judicial action.

5. Late Charges and Acceleration. Payments more than _________ days late shall incur a late fee of _______ % of the overdue amount. Upon a default exceeding _________ days, Seller may, at its option, declare the entire unpaid balance immediately due and payable.

C. Coordination of Payments. If both Subject-To and Seller-Financing components apply, Buyer shall make each payment separately as directed by Seller. Seller may request verification of Buyer's payments on the underlying loan(s) to ensure compliance and protect Seller's equity interest.

TERMS.

1. Buyer has _________ business days from signing to complete due diligence, with reasonable access provided by Seller, who shall disclose any known conditions affecting value. Close of escrow is flexible but prioritized.

2. Seller agrees to the closing services of any reliable escrow company chosen by Buyer.

3. Property is sold "as is," with no warranties expressed or implied by Seller. If the Property is materially damaged before closing, Buyer may terminate and receive a full refund of earnest money.

4. Seller is of sound mind, under no pressure or influence, and has full legal authority to sell the Property.

5. Seller grants Buyer access to the Property to evaluate needed repairs and to conduct a final inspection.

6. If the Property is vacant land, Buyer may verify lot dimensions, legal access, flood zone, and survey conditions, and may terminate with a full refund of earnest money if the land does not meet survey or feasibility requirements.

7. Contingent on Seller conveying clear, insurable title; Buyer may extend closing as reasonably needed to clear title. If title is not insurable, this Agreement terminates and all earnest money is refunded to Buyer.

8. This Agreement is contingent on Buyer's satisfactory due-diligence review; Buyer may cancel during the due-diligence period for a full refund of earnest money, and Seller irrevocably instructs escrow to return the deposit to Buyer upon such cancellation without further consent.

9. A Memorandum of this Agreement may be recorded to show Buyer's interest in the Property.

10. Possession. At closing, possession shall be delivered as selected below:

☐ Vacant — delivered vacant and confirmed by final walkthrough prior to closing.

☐ Tenant(s) in place — subject to existing lease(s); Seller provides leases and estoppel certificate(s) at closing.

☐ Seller lease-back — Seller may remain after closing under a separate Post-Closing Occupancy Agreement.

11. While this Agreement is in effect, Seller agrees not to list, sell, lease, or further encumber the Property to another party except through Buyer as provided below.

12. If Buyer does not close, Seller shall retain the earnest money deposit as full and agreed compensation, and neither party shall owe the other anything further. The prevailing party in any dispute shall recover reasonable attorneys' fees and costs.

13. This Agreement is governed by the laws of the state where the Property is located and may be signed electronically and in counterparts, each of which is deemed an original.

ADDITIONAL TERMS AND CONDITIONS:

THIS OFFER EXPIRES 72 HOURS AFTER IT IS SENT TO SELLER.

NOVATION, MARKETING & FEE DISCLOSURES

Marketing & Listing. Seller authorizes Buyer to market and list the Property for resale, including on the MLS, during the term of this Agreement.

Assignment & Novation. Buyer may assign this Agreement or novate it by substituting a new agreement between Seller and an end buyer. Seller agrees to cooperate and sign reasonable novation or replacement documents to convey title directly to the end buyer.

Buyer's Compensation. Buyer's compensation is the difference between the price paid by the end buyer and Seller's agreed net proceeds (the "Assignment/Novation Fee"), paid to Buyer through escrow at closing. Seller consents to this fee.

Seller Net Guarantee. Seller shall receive the net proceeds stated above regardless of the resale or end-buyer price.

Cooperation. Seller shall reasonably cooperate with the end buyer's lender, appraiser, and inspectors, and shall keep the Property accessible for showings during the marketing period.

Investor & Licensure. Buyer is a real estate investor acting for its own account, and Buyer or its representatives may hold a real estate license. The price may not reflect the Property's fair market value. Seller enters into this Agreement voluntarily and without coercion.

Authorization to Sign Listing Documents and Offers

BE IT ACKNOWLEDGED that I/we, ____ the "Seller," do hereby grant a limited and specific authorization to sign listings and offer documentation to Freedom Offers LLC as my "Attorney-in-Fact." Said Attorney-in-Fact shall have full power and authority to undertake and perform the following acts on my behalf for the property address on the purchase agreement.

Authorizing the Attorney-in-Fact to sign a listing agreement for the Seller and on behalf of the Seller. Seller specifically authorizes and gives permission to the Attorney-in-Fact to list the property on any and all multiple listing service(s) (MLS) for the purpose of marketing & selling the Property. This includes executing listing agreements, listing agreement addendums, disclosures, sales contracts, and addendums for the Seller and on behalf of the Seller.

The authority herein shall include such incidental acts as reasonably required to carry authorities granted herein. This authorization form shall automatically be revoked upon my death or incapacitation, provided any person relying on this power of attorney shall be given full rights to accept and rely upon the authority of the Attorney-in-Fact until the receipt of actual notice of revocation.

Seller Default

If Seller defaults in performance under this agreement, Buyer reserves all legal and/or equitable rights (such as specific performance) against Seller, and Buyer may seek to recover Buyer's actual damages incurred by Buyer due to Seller's default. Seller default includes, but is not limited to: not reasonably communicating with the Buyer or third party companies, not providing reasonable access to the property, or not cooperating with the closing agents.

Confirmation of No Agency Relationship

Buyer and Seller disclose and confirm that there is no agency relationship between them. In the event either Buyer or Seller is a licensed real estate agent or licensed real estate broker, Buyer and Seller confirm that there is no oral or written brokerage agreement or listing agreement between them such that neither Buyer nor Seller owe each other any duties as set forth in their licensed State's Revised Statutes.

In the event of a dispute between Buyer and Seller concerning the existence of a brokerage agreement or listing agreement between them and/or licensee duties owed from one to the other, this disclosure form shall be conclusive proof that no agency relationship exists between Buyer and Seller as of the date this disclosure is signed.

SELLER

Signature: ____________________________________ Date: _______________________

Printed Name: _________________________________

SELLER

Signature: ____________________________________ Date: _______________________

Printed Name: _________________________________

BUYER

Signature: ____________________________________ Date: _______________________

Jonathan Cruz, President of Freedom Offers LLC